

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF VENTURA**

**Tentative Ruling**

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**2026CUCO065268: LOS ROBLES REGIONAL MEDICAL CENTER vs HERITAGE  
PROVIDER NETWORK, INC., A CALIFORNIA CORPORATION, et al.**

**09/23/2026 in Department 40**

**Motion to Strike Defendants Affirmative Defensens**

**Los Robles Regional Medical Center v. Heritage Provider Network, Inc., et al.**

2026CUCO065268

September 23, 2026 at 8:30 a.m.

Hon. Dennis Hayashi; Dept. 40

**Motion:** Plaintiff's Motion to Strike Defendants' Affirmative Defenses (*Opposed*)

The Court intends to rule as follows:

The Court has considered Plaintiff Los Robles Regional Medical Center's Motion to Strike Certain Affirmative Defenses, Defendants' opposition, Plaintiff's reply, and the accompanying Request for Judicial Notice.

Defendants' Request for Judicial Notice is GRANTED as to Exhibits A and B. The Court takes judicial notice of the existence and contents of the records, but not the truth of reasonably disputable factual matters contained therein. *Blue Cross of California v. Rouillard* (Sacramento County Super. Ct. 2014) 2014 Cal. Super. LEXIS 24438 is not binding authority, and the DMHC materials reflect the agency's stated interpretive position but are not binding on the Court.

Plaintiff's Motion to Strike is GRANTED in part and DENIED in part.

At this stage of the proceedings, a motion to strike is properly directed to matter that is facially irrelevant, improper, or legally unavailable. It is not ordinarily a vehicle for obtaining advance merits determinations concerning defenses whose applicability depends upon claim-specific facts yet to be developed in discovery. This consideration is particularly significant here, where the action concerns more than 1,000 individual reimbursement claims.

The motion is GRANTED as unopposed as to the following affirmative defenses:

- Lack of Reliance (Answer, ¶ 15);
- Failure to Mitigate (¶ 17);
- Health and Safety Code section 1371.25 (¶ 20);
- Unjust Enrichment (¶ 22); and
- Bad Faith/Allegations Without Facts or Reasonable Basis (¶ 28).

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Heritage has stated that it no longer seeks to maintain those defenses.

The motion is GRANTED as to Abstention (Answer, ¶ 27). Judicial abstention does not provide a defense to the monetary quantum meruit relief sought in the Complaint. (See *Hambrick v. Healthcare Partners Medical Group, Inc.* (2015) 238 Cal.App.4th 124, 150.) The defect is legal rather than factual, and paragraph 27 is stricken without leave to amend.

The motion is GRANTED as to Insurance Code section 1871.7(e) (Answer, ¶ 35). That statute authorizes a qui tam action and does not itself constitute an affirmative defense to Plaintiff's quantum meruit claim. Paragraph 35 is stricken without leave to amend. This ruling does not preclude Defendants from relying upon otherwise cognizable defenses based on allegedly fraudulent billing conduct.

The motion is GRANTED with leave to amend as to Penal Code section 550 (Answer, ¶ 34). Penal Code section 550 is not itself a freestanding affirmative defense. Defendants have, however, identified a potentially cognizable underlying theory based on allegedly false or fraudulent billing. Defendants may amend to plead, if they can, a recognized affirmative defense supported by ultimate facts concerning that alleged conduct.

The motion is DENIED as to the following affirmative defenses:

- Consent (Answer, ¶ 13);
- Offset/Setoff (¶ 14);
- Conformity with Statutes, Regulations, and Industry Standards (¶ 19);
- Privilege (¶ 21);
- Illegality (¶ 25);
- Violation of Medicare Regulations (¶ 26);
- Preemption (¶ 31); and
- Never Event (¶ 32).

As to these defenses, Plaintiff has not demonstrated from the face of the Answer or judicially noticeable matters that the defenses are legally unavailable or necessarily irrelevant. Their applicability depends, at least in part, upon facts concerning the individual reimbursement claims, billing practices, coverage, payments, and communications between the parties. The Court expresses no view at this time as to whether Defendants ultimately can establish any of these defenses.

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No ruling is required as to Accord and Satisfaction (Answer, ¶ 18), because Plaintiff expressly withdrew its request to strike that defense in reply.

Defendants may file an amended Answer consistent with this ruling within 20 days of notice of this order.

Plaintiff Los Robles Regional Medical Center shall give notice.